

M/s Nourishing Food (Pvt.) Limited v. State of U.P.

Allahabad High Court · Division Bench · 8 February 2017 · WRIT - C No. 5802 of 2017 · **Writ disposed; HV-1/HV-2 billing dispute relegated to clause 6.5.**

HEADNOTE

Writ against PVVNL's communication billing a Ghaziabad multiplex under HV-1 instead of HV-2 disposed of by relegating the petitioner to Clause 6.5 of the Electricity Supply Code, 2005. The Court did not decide whether a 22 May 1999 industrial-status notification required industrial billing. Any clause 6.5 objection is to be decided in accordance with law, preferably within three months; deposits abide that decision.

FACTUAL SUMMARY

The petitioner set up a multiplex in Ghaziabad. It challenged a 7 September 2016 communication of the Executive Engineer, Electricity Urban Distribution Division-V, Paschimanchal Vidyut Vitran Nigam Limited, Ghaziabad, that billing for the multiplex complex would be under HV-1 instead of HV-2, and a bill was raised on that basis. Counsel submitted that a 22 May 1999 State Government notification conferred industrial status on multiplex halls, so the petitioner should be treated as an industry and not as a commercial organisation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-tariff-category

HOLDING

A dispute over whether a multiplex is to be billed under HV-1 or HV-2, including reliance on a State notification treating multiplex halls as industry, is to be raised under Clause 6.5 of the Electricity Supply Code, 2005. The writ is disposed of with a direction that, if the petitioner invokes clause 6.5, the authority shall decide in accordance with law, preferably within three months of a certified copy being filed. Merits were not adjudicated; any deposit remains subject to that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE MULTIPLEX WAS CORRECTLY BILLED UNDER HV-1 RATHER THAN HV-2, AND WHETHER THE 22 MAY 1999 INDUSTRIAL-STATUS NOTIFICATION APPLIED

Court expressly declined to adjudicate merits; the authority is to decide if clause 6.5 is invoked. ¶ 1